

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Olga Bentin	Team: Squad #04	CCRB Case #: 201801142	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 02/12/2018 9:40 AM	Location of Incident: 160th Street and 84th Road	18 Mo. SOL 8/12/2019	Precinct: 107
Date/Time CV Reported Mon, 02/12/2018 10:23 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 02/12/2018 10:23 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Brian Finnerty	01770	960543	107 PCT
2. POM Nicholas Frawley	02636	960557	107 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Antania Banks	25143	963860	103 PCT
2. POM Matthew Marrero	15777	957813	103 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Nicholas Frawley	Abuse: Police Officer Nicholas Frawley refused to provide his shield number to § 87(2)(b)	A . Unfounded
B . POM Brian Finnerty	Abuse: Police Officer Brian Finnerty refused to provide his name and shield number to § 87(2)(b)	B . Substantiated
C . POM Brian Finnerty	Abuse: Police Officer Brian Finnerty seized § 87(2)(b)s property.	C . Substantiated

Case Summary

On February 12, 2018, § 87(2)(b) contacted the CCRB by phone and filed this complaint.

On February 12, 2018, at 9:40 a.m., at 160th Street and 84th Road in Queens, PO PO Nicholas Frawley and PO Brian Finnerty of the 107th Precinct arrested § 87(2)(b)'s boyfriend, § 87(2)(b).

§ 87(2)(b) requested the names and shield numbers of PO Frawley (**Abuse of Authority: Allegation A, unfounded**) and PO Finnerty (**Abuse of Authority: Allegation B, substantiated**).

PO Finnerty obtained § 87(2)(b)'s driver's license and car registration, and left the scene without returning them to § 87(2)(b) (**Abuse of Authority: Allegation C, substantiated**).

§ 87(2)(b) was arrested for § 87(2)(b) (BR 02). No other arrests or summons resulted from this incident.

§ 87(2)(b) provided the investigation with the video recording she made during this incident. It is located in and can be viewed from Investigative Action #50 (BR 05).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Nicholas Frawley refused to provide his shield number to § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Brain Finnerty refused to provide his name and shield number to § 87(2)(b)

The investigation was able to establish the following facts.

On February 12, 2018, at approximately 8:30 a.m., PO Finnerty (BR 06) and PO Frawley (BR 08) responded to a radio report of a car accident 160th Street and Grand Central Parkway. There they met § 87(2)(b) who had called 911 to report the accident, and § 87(2)(b) § 87(2)(b) showed the officers her black 2013 Nissan Pathfinder, which was dented, scratched, and missing its front license plate. § 87(2)(b) told the officers that she had no knowledge as to how the damage was sustained, and believed that another driver had backed into her vehicle in its parking space sometime the night prior. § 87(2)(b) also reported this to the CCRB in her interview (BR 01); § 87(2)(b) provided a telephone statement (BR 03) consistent with § 87(2)(b)'s account of events but did not provide a sworn statement (BR 04)).

PO Frawley and PO Finnerty requested § 87(2)(b)'s license, registration, and insurance, as she was the registered owner of the vehicle, and returned to their RMP to file an accident report. As they did so, PO Michelle Anthony of the 103rd Precinct contacted PO Finnerty and informed them that § 87(2)(b)'s vehicle had been involved in an accident in the confines of the 103rd Precinct approximately 30 minutes prior (BR 07), and that she was transporting a victim, § 87(2)(b), to § 87(2)(b) for § 87(2)(b). PO Anthony also told PO Finnerty that § 87(2)(b) had described a male driver with a female passenger, and that § 87(2)(b)'s front license plate had been found at the scene. § 87(2)(b) later viewed a photograph of § 87(2)(b) and confirmed that he had been operating § 87(2)(b)'s vehicle at the time of the collision. This is generally confirmed by the police accident report prepared by PO Michelle (BR 07) and § 87(2)(b)'s arrest (BR 02).

Based upon the information provided by PO Anthony, at approximately 9:40 a.m., PO Frawley and PO Finnerty attempted to place § 87(2)(b) under arrest for fleeing the scene of an accident. § 87(2)(b) resisted by refusing to exit § 87(2)(b)'s vehicle, pulling away from the officers, and saying, "You are not going to arrest me." PO Frawley and PO Finnerty eventually

pulled § 87(2)(b) from the vehicle. PO Finnerty and PO Frawley turned § 87(2)(b) to face the vehicle and continued their attempts to handcuff him. § 87(2)(b) continued to resist by moving his hands up and down.

§ 87(2)(b) approached the officers as they were attempting to handcuff § 87(2)(b) coming within a foot or two of § 87(2)(b). § 87(2)(b) recorded the incident on her cell phone (BR 05) while asking the officers for their names and shield numbers.



201801142_20180223_0727_DM.mp4

In the aforementioned video, at the 00:23 mark, § 87(2)(b) faces PO Frawley and asks him for his name. PO Frawley points to his name plate and shield, which is clearly legible as “Frawley, 2636,” and says, “It’s all right here.” § 87(2)(b) again asks for PO Frawley’s name and badge number. PO Frawley continues to point to his name plate and shield, saying, “Officer Frawley, 107 Precinct.” § 87(2)(b) asks, “Okay, Officer Frawley, what is your badge number?” PO Frawley does not respond to § 87(2)(b) and begins escorting § 87(2)(b) to the police vehicle with PO Finnerty. § 87(2)(b) follows them.

At 1:50 minutes, the officers place § 87(2)(b) in the rear passenger side of the police vehicle. § 87(2)(b) says to § 87(2)(b) “107 Precinct, Finnerty, Finnerty, whatever.” PO Finnerty then closes the rear passenger side door, walks around to the driver side, and gets into the front seat. § 87(2)(b) follows PO Finnerty, repeatedly saying, “Officer, I did not get your name and badge number.” PO Finnerty attempts to shut the driver side door, but cannot do so because § 87(2)(b) is standing in its path. PO Finnerty says something to § 87(2)(b) that is not clearly audible. § 87(2)(b) steps back. PO Finnerty closes the door and leaves the scene without providing his name or badge number to § 87(2)(b).

PO Finnerty said he did not provide his name or badge number because he believed the situation was getting “out of control” to the point that it constituted an “exigent circumstance,” because of § 87(2)(b)’s resistance and the manner in which § 87(2)(b) approached officers. PO Finnerty also said at some point § 87(2)(b) attempted to open the rear passenger side door to let § 87(2)(b) out, so that PO Finnerty’s attention was focused on ensuring § 87(2)(b) did not escape. The moment described by PO Finnerty is not depicted on the video footage § 87(2)(b) provided, nor could PO Finnerty identify this moment upon review of the footage.

PO Frawley (BR 08) estimated that he provided his name and shield number to § 87(2)(b) approximately five times throughout the incident, saying, “Officer Frawley, shield 2636, 107 Precinct.” PO Frawley reviewed the video footage, and noted that § 87(2)(b) began recording later than he thought, but that he provided his shield number to her verbally before she began recording. § 87(2)(b) stood in the officer’s way as they attempted to walk § 87(2)(b) to the police vehicle, but never actively obstructed or made physical contact with officers.

Officers must courteously and clearly state their names and shield numbers or otherwise provide them to anyone who requests them to do so, and allow the person ample time to note this information. Patrol Guide 203-09 (BR 09).

§ 87(2)(g)

As such, it is recommended that **Allegation A** be closed as **unfounded**.

§ 87(2)(g)

As such, it is recommended that **Allegation B** be closed as **substantiated**.

Allegation (C) Abuse of Authority: Police Officer Brian Finnerty seized § 87(2)(b)'s property.

It is not disputed that PO Finnerty was the officer who requested § 87(2)(b)'s license, registration, and insurance, and that he left the scene without returning these items to § 87(2)(b). It is not disputed that PO Finnerty did not inform § 87(2)(b) that her documents were being seized, and that § 87(2)(b) then had to walk to the 107th Precinct stationhouse to retrieve these documents from PO Finnerty.

PO Finnerty (BR 06) initially requested these documents from § 87(2)(b) so that an accident report could be completed. After learning that § 87(2)(b) had fled the scene of an accident in § 87(2)(b)'s vehicle, PO Finnerty needed the documents to complete a Z-Finest check for § 87(2)(b) and her vehicle, which he could not perform from his vehicle's tablet. PO Finnerty did not inform § 87(2)(b) that he was taking her documents. PO Finnerty made copies of these documents at the stationhouse in case he would need them in the future and returned them to § 87(2)(b) once she arrived at the stationhouse. PO Finnerty did not record any of § 87(2)(b)'s information in his memo book (BR 14).

PO Frawley (BR 08) § 87(2)(g) said that PO Finnerty kept her documents because her information was required to process paperwork with the insurance company for the accident with § 87(2)(b).

Patrol Guide Section 217-01 (BR 10) notes that officers must obtain the driver's license, vehicle registration, and insurance identification card from the drivers of all vehicles involved in a collision, record the required information, and return the credentials to the driver. Patrol Guide Section 209-24 (BR 15) notes that driver's license checks are mandatory for all traffic collisions involving physical injury, or any collision or vehicle stop if the RMP is equipped with a Mobile Digital Terminal (computer). If the computer is inoperative, the circumstances do not warrant a detention, and the operator of the vehicle possesses a valid driver's license, vehicle registration, insurance card, etc., the member of service concerned will make an entry in his activity log and include the operator's name, address, telephone number, date of birth, and driver's license number.

§ 87(2)(g)

As such, it is recommended that **Allegation C** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 12).

- PO Frawley has been a member of service for two years and has no prior CCRB history.
- PO Finnerty has been a member of service for two years and has no prior CCRB history.

Mediation, Civil and Criminal Histories

- This case is not eligible for mediation due to § 87(2)(b)'s arrest.
- A FOIL request was sent to the NYC Comptroller on April 12, 2018, for any Notice of Claim filed in regard to this incident. The results of the request will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 4

Investigator: _____ _____ _____
 Signature Print Title & Name Date

Squad Leader: _____ _____ _____
 Signature Print Title & Name Date

Reviewer: _____ _____ _____
 Signature Print Title & Name Date